

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR

HOUSE BILL NO. 4051

By: Caldwell (Trey) and Kane of
the House

and

Hall and Haste of the
Senate

COMMITTEE SUBSTITUTE

An Act relating to the Oklahoma Health Care
Authority; amending 63 O.S. 2021, Section 5020A,
which relates to the Rate Preservation Fund;
modifying and limiting authorized uses of funds; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 63 O.S. 2021, Section 5020A, is
amended to read as follows:

Section 5020A. A. There is hereby created in the State
Treasury a fund for the Oklahoma Health Care Authority to be
designated the "Rate Preservation Fund". The fund shall be a
continuing fund, not subject to fiscal year limitations, and shall
consist of monies designated to the fund by law. All monies

1 accruing to the credit of the fund are hereby appropriated and may
2 be budgeted and expended by the Authority for the sole purpose of
3 maintaining reimbursement rates to providers purposes described in
4 subsection B of this section. Expenditures from the fund shall be
5 made upon warrants issued by the State Treasurer against claims
6 filed as prescribed by law with the Director of the Office of
7 Management and Enterprise Services for approval and payment. The
8 Administrator of the Authority may request the Director of the
9 Office of Management and Enterprise Services to transfer monies
10 between the Rate Preservation Fund and any other fund of the
11 Authority as needed for the expenditure of funds.

12 B. The Oklahoma Health Care Authority is authorized to budget
13 and expend monies from the Rate Preservation Fund as follows:

14 1. ~~For~~ Only as directed annually by enacted legislation
15 directing the scope of such utilization, for maintaining
16 reimbursement rates to providers in the event of a decrease in the
17 state's Federal Medical Assistance Percentage rate; and

18 2. Subject to the approval of the Director of the Office of
19 Management and Enterprise Services, the Oklahoma Health Care
20 Authority may transfer up to one-third (1/3) of the balance of the
21 Rate Preservation Fund in any given state fiscal year to other funds
22 of the Authority to meet cash flow needs of the state's Medicaid
23 program, so long as the monies are transferred back to the Rate
24

1 Preservation Fund prior to the end of the state fiscal year in which
2 they were originally transferred.

3 SECTION 2. It being immediately necessary for the preservation
4 of the public peace, health or safety, an emergency is hereby
5 declared to exist, by reason whereof this act shall take effect and
6 be in full force from and after its passage and approval.

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